
GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

TABLE OF CONTENTS

Part 21 - Certification Procedures for Products and Articles

SUBPART A – GENERAL

§ 21.1 Applicability.	5
§ 21.2 GACA Recognized Foreign National Aviation Authorities	5
§ 21.3 Falsification of Applications, Reports, or Records.	5
§ 21.5 Reporting of Failures, Malfunctions, and Defects.	6
§ 21.7 Airplane or Rotorcraft Flight Manual.	8
§ 21.9 Instructions for Continued Airworthiness and Manufacturer's Maintenance	9
Manuals having Airworthiness Limitations Sections.	
§ 21.11 Continued Airworthiness and Safety Improvements for Transport Category	10
Airplanes.	
§ 21.13 Approval of Articles.	10
§ 21.15 Replacement and Modification Articles.	11
§ 21.17 Required Design Changes.	11

SUBPART B – TYPE CERTIFICATES

§ 21.31 Applicability.	13
§ 21.33 Eligibility.	13
§ 21.35 Type Certificate Acceptance.	13
§ 21.37 Type Certificate Validation.	14
§ 21.39 Special Conditions.	15
§ 21.41 Designation of Applicable Regulations.	15
§ 21.43 Compliance with Applicable Requirements.	17
§ 21.45 Type Design.	17
§ 21.47 Type Certificate.	18
§ 21.49 Duration.	18

SUBPART C – CHANGES TO TYPE CERTIFICATES

§ 21.61 Applicability.	19
§ 21.63 Design Changes for Aircraft certificated by way of type certificate acceptance.	19
§ 21.64 Design Changes for Aircraft type certificated by the way of type certificate	21
validation	
§ 21.65 Validation of Design Changes	22
§ 21.66 Classification of changes to in the type design	23
§ 21.67 Designation of Applicable Regulations.	23
§ 21.69 Duration.	25

SUBPART D – SUPPLEMENTAL TYPE CERTIFICATES

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

§ 21.81 Applicability.	26
§ 21.83 Changes Requiring a New Type Certificate.	26
§ 21.85 Eligibility for a Supplemental Type Certificate.	26
§ 21.87 Applicable Requirements.	26
§ 21.89 Inspection and Tests.	26
§ 21.91 Flight tests.	27
§ 21.93 Flight Test Pilot.	28
§ 21.95 Flight Test Instrument Calibration and Correction Report.	28
§ 21.97 Statement of Conformity.	28
§ 21.99 Compliance with Applicable Requirements.	28
§ 21.101 Issue of Supplemental Type Certificates.	29
§ 21.103 Privileges.	29
§ 21.105 Responsibility of Supplemental Type Certificate Holders to Provide Written Permission for Alterations.	29
§ 21.107 Design Approval Information Retention.	29
§ 21.109 Duration.	30
§ 21.111 Changes in Type Design.	30
SUBPART E – REPAIR DESIGN APPROVALS	
§ 21.121 Applicability.	31
§ 21.123 Eligibility for a Repair Design Approval.	31
§ 21.125 Applicable Requirements.	31
§ 21.127 Inspection and Tests.	31
§ 21.129 Statement of Conformity.	31
§ 21.131 Compliance with Applicable Requirements.	31
§ 21.133 Issue of Repair Design Approval.	31
§ 21.135 Privileges.	32
§ 21.137 Responsibility of Repair Design Approval Holders to Provide Written Permission for Repairs.	32
§ 21.139 Design Approval Information Retention.	32
§ 21.141 Duration.	32
SUBPART F – AIRWORTHINESS CERTIFICATES	
§ 21.151 Applicability.	33
§ 21.153 Eligibility.	33
§ 21.155 Airworthiness Certificates: Classification.	33
§ 21.157 Amendment or Modification.	33
§ 21.159 Transferability.	33
§ 21.161 Duration.	33

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

§ 21.163 Aircraft Identification.	35
§ 21.165 Issue of Standard Airworthiness Certificates for Imported Normal, Utility, Acrobatic, Commuter, and Transport Category Aircraft; Manned Free Balloons; and Special Classes of Aircraft.	35
§ 21.167 Issue of Special Airworthiness Certificates for Primary Category Aircraft.	36
§ 21.169 Issue of Special Airworthiness Certificates for Restricted Category Aircraft.	37
§ 21.170 Issue of Special Airworthiness Certificates for a Light-Sport Category Aircraft.	38
§ 21.171 Issue of Multiple Airworthiness Certification.	40
§ 21.173 Issue of Experimental Certificates.	40
§ 21.175 Experimental Certificates: General.	41
§ 21.177 Experimental Certificates: Aircraft to be Used for Market Surveys, Sales Demonstrations, and Customer Crew Training.	43
§ 21.179 Special Flight Permits.	43
§ 21.181 Issue of Special Flight Permits.	44
SUBPART G – SAUDI ARABIA PARTS MANUFACTURER APPROVALS (SAPMA)	
§ 21.201 Applicability.	46
§ 21.203 Application.	46
§ 21.205 Organization.	47
§ 21.207 Quality System.	47
§ 21.209 Quality Manual.	49
§ 21.211 Location of or Change to Manufacturing Facilities.	49
§ 21.213 Inspections and Tests.	49
§ 21.215 Issuance.	49
§ 21.217 Duration.	50
§ 21.219 Transferability.	50
§ 21.221 Responsibility of Holder.	50
§ 21.223 Design changes.	51
§ 21.225 Changes in the Quality System.	51
SUBPART H – EXPORT AIRWORTHINESS APPROVALS	
§ 21.241 Applicability.	52
§ 21.243 Export Airworthiness Approvals.	52
§ 21.245 Application.	52
§ 21.247 Issuance of Export Airworthiness Certificates.	52
§ 21.249 Issuance of Export Airworthiness Approvals for Aircraft Engines, Propellers and Articles.	53
§ 21.251 Responsibilities of Exporters.	53

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

SUBPART I – ACCEPTANCE OF AIRCRAFT ENGINES, PROPELLERS, AND ARTICLES FOR IMPORT

§ 21.261 Acceptance of Aircraft Engines and Propellers.	55
§ 21.263 Acceptance of Articles.	55

SUBPART J – SAUDI ARABIA TECHNICAL STANDARD ORDER (SATSO)

AUTHORIZATIONS

§ 21.271 Applicability.	56
§ 21.273 Application.	56
§ 21.275 Organization.	57
§ 21.277 Quality System.	57
§ 21.279 Quality Manual.	57
§ 21.281 Location of or Change to Manufacturing Facilities.	57
§ 21.283 Inspections and Tests.	57
§ 21.285 Issuance.	58
§ 21.287 Duration.	58
§ 21.289 Transferability.	58
§ 21.291 Responsibility of holder.	58
§ 21.293 Approval for Deviation.	59
§ 21.295 Design changes.	59
§ 21.297 Changes in Quality System.	60

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

SUBPART A – GENERAL

§ 21.1 Applicability.

(a) This part prescribes—

(1) Procedural requirements for type certification of imported products by way of type certificate acceptance and type certificate validation; design changes (including repair designs) to type certificated products; the issue of supplemental type certificates (STC), the issue of repair design approvals (RDA), the issue of a Saudi Arabia parts manufacturer approval (SAPMA), the issue of Saudi Arabia technical standard order (SATSO) authorization, the issue of airworthiness certificates; and the issue of export airworthiness approvals.

(2) Rules governing the holders of any certificate specified in paragraph (a)(1) of this section.

§ 21.2 GACA Recognized Foreign National Aviation Authorities

For the purpose of this part , a GACA Recognized Foreign National Aviation Authority (NAA) is any of the following:

(a) FAA

(b) EASA

(c) Any other national aviation authority of an ICAO Contracting State that is accepted by GACA under conditions set by the President (however described) where the Contracting State is the state of design.

§ 21.3 Falsification of Applications, Reports, or Records.

(a) No person must make or cause to be made—

(1) Any fraudulent or intentionally false statement on any application for a certificate or approval under this part;

(2) Any fraudulent or intentionally false entry in any record or report that is required to be kept,

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

made, or used to show compliance with any requirement for the issuance or the exercise of the privileges of any certificate or approval issued under this part;

(3) Any reproduction for a fraudulent purpose of any certificate or approval issued under this part; or

(4) Any alteration of any certificate or approval issued under this part.

(b) The commission by any person of an act prohibited under paragraph (a) of this section is a basis for suspending or revoking any certificate or approval issued under this part held by that person.

§ 21.5 **Reporting of Failures, Malfunctions, and Defects.**

(a) **System for Collection, Investigation, and Analysis of Data.** The holder of a supplemental type certificate, repair design approval, SAPMA or SATSO authorization must have a system for collecting, investigating, and analyzing reports of and information related to failures, malfunctions, defects, or other occurrences that cause or might cause adverse effects on the continuing airworthiness of the product, part or appliance covered by the design approval. Information about this system must be made available to all known operators of the product, part or appliance and, on request, to any person authorized under other associated implementing General Authority of Civil Aviation Regulation (GACAR).

(b) **Investigation of Reported Occurrences.** When an occurrence reported under paragraph (c) of this section results from a deficiency in the design, or a manufacturing deficiency, the holder of a supplemental type-certificate, repair design approval, SAPMA, SATSO authorization must investigate the reason for the deficiency and report to the GACA the results of its investigation and any action it is taking or proposes to take to correct that deficiency.

(c) Except as provided in paragraph (e) of this section, the holder of a supplemental type certificate, repair design approval, a SAPMA, or a SATSO authorization must report any failure, malfunction, or defect in any product or article manufactured by it that it determines has resulted in any of the occurrences listed in paragraph (d) of this section.

(d) The following occurrences must be reported as provided in paragraphs (c) of this section:

(1) Fires caused by a system or equipment failure, malfunction, or defect.

(2) An engine exhaust system failure, malfunction, or defect that causes damage to the engine,

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

adjacent aircraft structure, equipment, or components.

(3) The accumulation or circulation of toxic or noxious gases in the crew compartment or passenger cabin.

(4) A malfunction, failure, or defect of a propeller control system.

(5) A propeller or rotorcraft hub or blade structural failure.

(6) Flammable fluid leakage in areas where an ignition source normally exists.

(7) A brake-system failure caused by structural or material failure during operation.

(8) A significant primary structural defect or failure in the aircraft caused by any autogenous condition (fatigue, understrength, corrosion, etc.).

(9) Any abnormal vibration or buffeting caused by a structural or system malfunction, defect, or failure.

(10) An engine failure.

(11) Any structural or flight control system malfunction, defect, or failure that causes an interference with normal control of the aircraft and derogates the flying qualities.

(12) A complete loss of more than one electrical power generating system or hydraulic power system during a given operation of the aircraft.

(13) A failure or malfunction of more than one attitude, airspeed, or altitude instrument during a given operation of the aircraft.

(e) The requirements of paragraph (c) of this section do not apply to—

(1) Failures, malfunctions, or defects that the holder of a supplemental type certificate, repair design approval, SAPMA, or SATSO authorization—

(i) Determines were caused by improper maintenance or improper usage.

(ii) Knows were reported to the GACA by another person under the GACAR.

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

(2) Failures, malfunctions, or defects in products, parts, or articles manufactured by a foreign manufacturer and exported to the Kingdom of Saudi Arabia under GACAR § 21.263.

(f) Each report required by this section—

(1) Must be made to the GACA within 24 hours after it has determined that the failure, malfunction, or defect required to be reported has occurred. However, a report that is due on a Thursday or a Friday may be delivered on the following Saturday, and one that is due on a holiday may be delivered on the next workday.

(2) Must be transmitted in a manner and form acceptable to the President and by the most expeditious method available.

(3) Must include as much of the following information as is available and applicable:

(i) Aircraft serial number.

(ii) When the failure, malfunction, or defect is associated with an article approved under a SAPMA or SATSO authorization, the article serial number and model designation, as appropriate.

(iii) When the failure, malfunction, or defect is associated with an engine or propeller, the engine or propeller serial number, as appropriate.

(iv) Product model.

(v) Identification of the part, component, or system involved. This must include the part number.

(vi) Nature of the failure, malfunction, or defect.

(g) Whenever the investigation of an accident or service difficulty report shows that an article manufactured under a SAPMA or SATSO authorization is unsafe because of a manufacturing or design defect, the manufacturer must, upon request of the President, report to the President the results of its investigation and any action taken or proposed by the manufacturer to correct that defect. If action is required to correct the defect in existing articles, the manufacturer must submit the data necessary for the issuance of an appropriate airworthiness directive (AD) to the GACA.

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

§ 21.7 Airplane or Rotorcraft Flight Manual.

(a) With each airplane or rotorcraft not type certificated with an Airplane or Rotorcraft Flight Manual and having no flight time before March 1, 1979, the holder of a type certificate (including amended or supplemental type certificates) or the licensee of a type certificate must make available to the owner at the time of delivery of the aircraft a current approved Airplane or Rotorcraft Flight Manual.

(b) The Airplane or Rotorcraft Flight Manual required by paragraph (a) of this section must contain the following information:

(1) The operating limitations and information required to be furnished in an Airplane or Rotorcraft Flight Manual or in manual material, markings, and placards, by the applicable regulations under which the airplane or rotorcraft was type certificated.

(2) The maximum ambient atmospheric temperature for which engine cooling was demonstrated must be stated in the performance information section of the Flight Manual, if the applicable regulations under which the aircraft was type certificated do not require ambient temperature on engine cooling operating limitations in the Flight Manual.

§ 21.9 Instructions for Continued Airworthiness and Manufacturer's Maintenance Manuals having Airworthiness Limitations Sections.

(a) The holder of type certificate or a supplemental type certificate for a rotorcraft for which a rotorcraft maintenance manual containing an "Airworthiness Limitations" section has been issued under GACAR § 27.1529 or GACAR § 29.1529 and who obtains approval of changes to any replacement time, inspection interval, or related procedure in that section of the manual must make those changes available upon request to any operator of the same type of rotorcraft.

(b) The holder of a type certificate or supplemental type certificate for an aircraft must furnish at least one set of complete instructions for continued airworthiness to the owner of each type aircraft upon its delivery, or upon issuance of the first standard airworthiness certificate for the affected aircraft, whichever occurs later. The instructions must be prepared in accordance with GACAR § 23.1529, 25.1529, 25.1729, 27.1529, 29.1529, 31.82, 33.4, and 35.4; or GACAR Part 26; or as specified in the applicable airworthiness criteria for special classes of aircraft defined in GACAR § 21.41(b), as applicable. If the holder of a design approval chooses to designate parts as commercial, it must

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

include a list of commercial parts in the instructions for continued airworthiness. Thereafter, the holder of a design approval must make those instructions available to any other person required by the GACAR to comply with any of the terms of those instructions. In addition, changes to the instructions for continued airworthiness must be made available to any person required by the GACAR to comply with any of those instructions.

(c) To designate commercial parts, the holder of a design approval, in a manner acceptable to GACA, must submit —

(1) A commercial parts list.

(2) Data for each part on the list, showing that—

(i) The failure of the commercial part, as installed in the product, would not degrade the level of safety of the product.

(ii) The part is produced only under the commercial part manufacturer's specification and marked only with the commercial part manufacturer's markings.

(iii) Any other data deemed to be necessary for the GACA to approve the list.

§ 21.11 Continued Airworthiness and Safety Improvements for Transport Category Airplanes.

The holder of a design approval and an applicant for a design approval must comply with the applicable continued airworthiness and safety improvement requirements of GACAR Part 26.

§ 21.13 Approval of Articles.

If an article is required to be approved under the GACAR, it may be approved—

(a) Under a SAPMA or the United States Federal Aviation Administration (FAA) PMA;

(b) Under a SATSO authorization, FAA TSO authorization, letter of FAA TSO design approval, or European Aviation Safety Agency (EASA) European Technical Standard Order (ETSO) authorization;

(c) In conjunction with type certification or supplemental type certification procedures for a product; or

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

(d) In any other manner approved by the President.

§ 21.15 Replacement and Modification Articles.

(a) If a person knows or should know that a replacement or modification article is reasonably likely to be installed on a type certificated product, the person may not produce that article unless it is—

(1) Produced under a SAPMA in accordance with Subpart G;

(2) Produced under a SATSO authorization in accordance with Subpart J;

(3) A standard part (such as a nut or bolt) manufactured in compliance with a government or established industry specification;

(4) A commercial part as defined in GACAR § 1.1;

(5) Fabricated by an appropriately rated certificate holder with a quality system, and consumed in the repair or alteration of a product or article in accordance with GACAR Part 43.

(b) Except as provided in paragraphs (a)(1) through (a)(2) of this section, a person who produces a replacement or modification article for sale may not represent that part as suitable for installation on a type certificated product.

§ 21.17 Required Design Changes.

(a) When an AD is issued under GACAR Part 39, the holder of the type certificate or supplemental type certificate for the product must—

(1) If the President finds that design changes are necessary to correct the unsafe condition of the product, and upon his request, submit appropriate design changes for approval.

(2) Upon approval of the design changes, make available the descriptive data covering the changes to all operators of products previously certificated under the type certificate or supplemental type certificate.

(b) In a case where there are no current unsafe conditions, but the GACA or the holder of the type certificate or supplemental type certificate finds through service experience that changes in type design will contribute to the safety of the product, the holder of the type certificate or supplemental type certificate may submit appropriate design changes for approval. Upon approval of the changes,

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

the manufacturer must make information on the design changes available to all operators of the same type of product.

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

SUBPART B – TYPE CERTIFICATES

§ 21.31 Applicability.

This subpart prescribes procedural requirements for the type certification of aircraft, aircraft engines, and propellers by way of type certificate acceptance or type certificate validation. This subpart applies only for an aircraft type certificated in a foreign country and imported into the Kingdom of Saudi Arabia.

§ 21.33 Eligibility.

- (a) Any person is eligible to apply for a certificate by way of type certificate acceptance if a type certificate or equivalent document has been issued by a GACA Recognized Foreign NAA. This will apply to any aircraft certificated in the primary, normal, utility, acrobatic, commuter, or transport category, or a manned free balloon or a special classes of aircraft;
- (b) Any person is eligible to apply for a certificate by way of type certificate acceptance if a type certificate or equivalent document issued by GACA Recognized Foreign NAA and certificated in the restricted category.
- (c) Any person is eligible to apply for a certificate by way of type certificate validation if a type certificate or equivalent document for an aircraft issued by an International Civil Aviation Organization (ICAO) Contracting State, provided that—
- (1) No type certificate or equivalent document has been issued or is likely to be issued, for the aircraft by the GACA Recognized Foreign NAA.
 - (2) There is an identified Saudi customer for the aircraft.
 - (3) The President agrees to accept the application.

§ 21.35 Type Certificate Acceptance.

- (a) By way of type certificate acceptance, GACA certifies all eligible aircraft on the basis of their respective GACA Recognized Foreign NAA type certificates, provided that the applicant furnishes to GACA the following:

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

- (1) One full set of the required operating and maintenance data for the aircraft and its associated engines and propellers.
- (2) An undertaking from the holder of foreign type certificate or equivalent document to continue to supply to GACA documents and their amendments of paragraph (a)(1) of this section
- (3) For aircraft type certificated by NAA other than the FAA and the EASA, manuals in accordance with GACAR §21.7 and § 21.9 as applicable.

(b) A GACA acceptance certificate is issued to certify that GACA has accepted an aircraft type and model certificated by a GACA Recognized Foreign NAA, The GACA Recognized Foreign NAA type certificate and the corresponding GACA Recognized Foreign NAA type certificate data sheet is considered to be the GACA type certificate for the purposes of this part. The type certificate acceptance of aircraft includes the associated engine(s) and propeller(s), as applicable.

(c) An application for type certificate acceptance must be made on a form and in a manner prescribed by the President.

§ 21.37 Type Certificate Validation.

(a) By way of type certificate validation, GACA type certificates all eligible aircraft provided that—

- (1) The country in which the product was manufactured certifies that the product has been examined, tested, and found to meet—
 - (i) The applicable aircraft noise, fuel venting, and exhaust emissions requirements as designated in GACAR § 21.41 or the applicable aircraft noise, fuel venting, and exhaust emissions requirements of the country in which the product was manufactured and any other requirements the President may prescribe to provide noise, fuel venting, and exhaust emission levels no greater than those provided by the applicable aircraft noise, fuel venting, and exhaust emission requirements as designated in GACAR § 21.41.
 - (ii) The applicable airworthiness requirements as designated in GACAR § 21.41, or the applicable airworthiness requirements of the country in which the product was

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

manufactured and any other requirements the President may prescribe to provide a level of safety equivalent to that provided by the applicable airworthiness requirements as designated in GACAR § 21.41.

(2) The applicant has submitted the technical data for the product required by the President concerning aircraft noise and airworthiness.

(3) The manuals, placards, listings, and instrument markings required by the applicable airworthiness requirements (and noise requirements, where applicable) are presented in the English language.

(b) A product type certificated under this section is considered to be type certificated under the noise standards of GACAR Part 36 and the fuel venting and exhaust emission standards of GACAR Part 34, where compliance therewith is certified under paragraph (a)(1)(i) of this section, and under the airworthiness standards certified under paragraph (a)(1)(ii) of this section.

(c) GACA type certificates are issued to signify GACA type certificate validation. The type certificate validation of an aircraft includes the associated engines and propellers, as applicable.

(d) An application for type certificate validation is made on a form and in a manner prescribed by the President.

§ 21.39 Special Conditions.

If the President finds that the airworthiness regulations do not contain adequate or appropriate safety standards for an aircraft, aircraft engine, or propeller because of a novel or unusual design feature of the aircraft, aircraft engine, or propeller, he prescribes special conditions and amendments for the product. The special conditions contain such safety standards for the aircraft, aircraft engine, or propeller as the President finds necessary to establish a level of airworthiness equivalent to that established in the regulations.

§ 21.41 Designation of Applicable Regulations.

(a) Except as provided in GACAR §§ 23.2, 25.2, 27.2, and 29.2, and in GACAR Parts 26, 34, and 36, an applicant for type certificate validation must show that the aircraft, aircraft engine, or propeller meets—

(1) Subject to paragraph (c) of this section, the applicable requirements are effective on the date

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

of application for the original type certificate issued by the state of design unless—

(i) Otherwise specified by the President.

(ii) Compliance with later effective amendments is elected or required under this section.

(2) Any special conditions are prescribed by the President.

(b) For special classes of aircraft, including the engines and propellers installed thereon (e.g., gliders, airships, and other nonconventional aircraft), for which airworthiness standards have not been issued, the applicable requirements will be the portions of those airworthiness requirements contained in GACAR Parts 23, 25, 27, 29, 31, 33, and 35 found by the President to be appropriate for the aircraft and applicable to a specific type design, or such airworthiness criteria as the President determines provide an equivalent level of safety to those parts.

(c) The original type certificate issued by the state of design for a transport category aircraft must have been issued within 5 years of the original date of application and for any other category of aircraft within 3 years of the original date of application, unless the President approves a longer period.

(d) Applicants that elect to comply with an amendment to the GACAR that is effective after the filing of the application for a type certificate must also comply with any other amendment that the President finds is directly related.

(e) For primary category aircraft, the requirements are—

(1) The applicable airworthiness requirements contained in GACAR Parts 23, 27, 31, 33, and 35, or such other airworthiness criteria as the President may find appropriate and applicable to the specific design and intended use, and provide a level of safety acceptable to the President.

(2) The noise standards of GACAR Part 36 applicable to primary category aircraft.

(f) For restricted category aircraft, the requirements are—

(1) The applicable airworthiness requirements of the aircraft category except those requirements that the President finds inappropriate for the special purpose(s) for which the aircraft is to be used;

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

(2) The applicable noise standards of GACAR Part 36.

(g) For the purposes of this section, "special purpose operations" includes—

- (1) Agricultural (spraying, dusting, and seeding, and livestock and predatory animal control);
- (2) Forest and wildlife conservation;
- (3) Aerial surveying (photography, mapping, and oil and mineral exploration);
- (4) Patrolling (pipelines, power lines, and canals);
- (5) Weather control (cloud seeding);
- (6) Aerial advertising (skywriting, banner towing, airborne signs and public address systems); and
- (7) Any other operation specified by the President.

§ 21.43 Compliance with Applicable Requirements.

The applicant for a type certificate validation or a supplemental type certificate validation must—

- (a) Show compliance with all applicable requirements and, upon request by GACA, provide to the GACA the means by which such compliance has been shown.
- (b) Provide a statement certifying that the applicant has complied with the applicable requirements.

§ 21.45 Type Design.

The type design consists of—

- (a) The drawings and specifications, and a listing of those drawings and specifications, necessary to define the configuration and the design features of the product shown to comply with the requirements of that part of the GACAR applicable to the product;
- (b) Information on dimensions, materials, and processes necessary to define the structural strength of the product;

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

- (c) The airworthiness limitations section of the instructions for continued airworthiness, as required by GACAR Parts 23, 25, 26, 27, 29, 31, 33, and 35, or as otherwise required by the President; and as specified in the applicable airworthiness criteria for special classes of aircraft defined in GACAR § 21.41(b);
- (d) For primary category aircraft, if desired, a special inspection and preventive maintenance program designed to be accomplished by an appropriately rated and trained pilot-owner; and
- (e) Any other data necessary to allow, by comparison, the determination of the airworthiness, noise characteristics, fuel venting, and exhaust emissions (where applicable) of later products of the same type.

§ 21.47 Type Certificate.

Each type certificate is considered to include the type design, the operating limitations, the type certificate data sheet, the applicable regulations of the GACAR with which the President records compliance, and any other conditions or limitations prescribed for the product.

§ 21.49 Duration.

A type certificate is effective until surrendered, suspended, revoked, or a termination date is otherwise established by the President.

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

SUBPART C – CHANGES TO TYPE CERTIFICATES

§ 21.61 Applicability.

This subpart prescribes procedural requirements for the approval of changes to type certificates or supplemental type certificates for aircraft type certificate accepted or type certificate validated by the GACA in accordance with Subpart B.

§ 21.63 Design Changes for Aircraft certificated by way of type certificate acceptance.

This regulation applies to design changes for aircraft certificated by way of type certificate acceptance under GACAR §21.35. The design change criteria stated in this section also apply to repair designs.

- (a) Design Changes introduced by the TC holder. GACA accepts all design changes introduced by the holder of TC. This includes minor and major design changes and changes via STC.
- (b) Design Changes to the STC introduced by the holder of the STC when holder of the STC is the holder of the TC. GACA accepts all design changes introduced by the holder of STC if the STC is held by the holder of TC.
- (c) Design Changes under bilateral agreement. GACA accepts all design changes otherwise accepted by GACA under the provisions of a bilateral agreement between a State of design and the Kingdom of Saudi Arabia.
- (d) Design Changes introduced by the designee or approved design organization of the State of design or the certifying national aviation authority. This applies to design changes introduced by the designees or the approved design organizations (however described) of the State of design. This also applies to the designees or the approved design organizations of the certifying national aviation authority. The design changes include minor and major design changes and changes via STC.
 - (i) Minor changes in the type design may be accepted by GACA under a method acceptable to the President.

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

- (ii) Major changes in the type design may be accepted by GACA if the approved design meets all GACA airworthiness requirements including any other additional airworthiness requirements as applicable. GACA may accept such design change under a method acceptable to the President.
- (iii) STCs may be accepted by GACA if the STC meets all GACA airworthiness requirements including any other additional airworthiness requirements as applicable. GACA may accept such STCs under a method acceptable to the President.
- (e) Design Changes to the STC introduced by the STC holder when the STC holder is not the holder of TC. Any design change to the STC may be accepted by GACA under a method acceptable to the President. This applies to design changes introduced by the holder of the STC when the holder of the STC is not the holder of the TC.
- (f) Design Changes approved by foreign aviation authorities. Foreign aviation authorities are the authorities other than GACA recognized foreign NAA as defined in GACAR §21.2. GACA must validate all design changes approved by a foreign national aviation authority as follows:
 - (i) Minor changes in the type design approved by foreign aviation authorities or their designees may be approved under a method acceptable to the President on a case by case basis.
 - (ii) Major changes in the type design must be approved by GACA under a method acceptable to the President. GACA approves major changes in type design by the way of validation under GACAR §21.65
 - (iii) STCs must be approved by GACA under a method acceptable to the President. GACA approves STC if the STC meets all the applicable requirements of GACAR Subpart D.
- (g) Design Changes Introduced by any Person. Design changes introduced by any other person not addressed in this section must be approved by GACA.
 - (i) Minor changes in the type design may be approved under a method acceptable to the President.

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

(ii) **Major changes** in the type design must be approved by GACA under a method acceptable to the President. GACA approves major changes in type design if the design meets all the applicable requirements of GACAR § 21.65.

§ 21.64 Design Changes for Aircraft Type Certificated By the Way of Type Certificate Validation

This regulation applies to design changes for aircraft certificated by way of type certificate validation under GACAR §21.37. The design change criteria stated in this section also apply to repair designs.

(a) Design Changes. GACA must validate all design changes approved by the State of design or by any other foreign national aviation authority. This includes minor and major design changes and changes via STC.

(1) **Minor changes** in the type design approved by foreign aviation authorities or their designees **may be approved** under a method acceptable to the President on a case by case basis.

(2) **Major changes** in the type design must be approved by GACA under a method acceptable to the President. GACA approves major changes in type design by the way of **validation** under GACAR §21.65

(3) STCs must be approved by GACA under a method acceptable to the President. GACA approves STC if the STC meets all the applicable requirements of GACAR Subpart D

(b) Design Changes to the STC. Changes to the STC must be approved by GACA under a method acceptable to the President.

(c) Design Changes under bilateral agreement. GACA accepts all design changes otherwise accepted by the GACA under the provisions of a bilateral agreement between a State of design and the Kingdom of Saudi Arabia.

(d) Design Changes Introduced by any Person. Design Changes introduced by any other person not addressed in this section must be approved by GACA.



GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

- (1) Minor changes in the type design may be approved under a method acceptable to the President.
- (2) Major changes in the type design must be approved by GACA under a method acceptable to the President. GACA approves major changes in type design if the design meets all the applicable requirements of GACAR § 21.65

§ 21.65 Validation of Design Changes.

(a) General.

GACA validates design changes when—

- (1) It is shown that the design change has been examined, tested, and found to meet The applicable airworthiness requirements as designated in GACAR § 21.67, or the applicable airworthiness requirements of the country in which the product was manufactured and any other requirements the President may prescribe to provide a level of safety equivalent to that provided by the applicable airworthiness requirements as designated in GACAR § 21.67.
- (2) The applicant has submitted the technical data. The data must include
 - (i) Showing that the design complies with the applicable airworthiness standards for the design
 - (ii) Inspection and test results
 - (iii) A copy of any instructions for continued airworthiness in respect of the design
 - (iv) If the design affects operating instruction and limitations of the aircraft, a copy of amended flight manual or a flight manual supplement
 - (v) Showing that the new part(s) and its materials conform to the specification in the type design

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

(vi) Showing that the new part(s) conform to the drawings in the design

(3) It is shown that no feature or characteristic of the design makes the aircraft, engine or propeller unsafe for its intended use

(4) Applicant must allow GACA to carry out an inspection or test or observe a test if requested by GACA

(b) GACA STCs or other forms of approval specified by the President are issued to signify approval based on design change validation.

(c) An application for design change validation must be made on a form and in a manner prescribed by the President.

(d) GACA type certificates or amended type certificates, GACA STCs or other forms of approval specified by the President are issued to signify approval based on design change validation.

(e) An application for design change validation must be made on a form and in a manner prescribed by the President.

§ 21.66 Classification of changes to in the type design.

Changes to the type design are classified as minor or major. A "minor change" is one that has no appreciable effect on the weight, balance, structural strength, reliability, operational characteristics, or other characteristics affecting the airworthiness of the product. All other changes are "major changes".

§ 21.67 Designation of Applicable Regulations.

(a) Except as provided in paragraph (h) of this section, an applicant for an approval of design change in accordance with GACAR § 21.65 must show that the change and areas affected by the change comply with the airworthiness requirements applicable to the category of the product in effect on the date of the original application to the state of design for the change and with GACAR Parts 34 and 36. Exceptions are detailed in paragraphs (b), (c) and (e) of this section.

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

(b) Except as provided in paragraph (g) of this section, if paragraphs (b)(1), (2), or (3) of this section apply, an applicant may show that the change and areas affected by the change comply with an earlier amendment of a regulation required by paragraph (a) of this section, and of any other regulation the President finds is directly related. However, the earlier amended regulation may not precede either the corresponding regulation incorporated by reference in the type certificate, or any regulation in GACAR § 23.2, 25.2, 27.2, or 29.2 that is related to the change. The applicant may show compliance with an earlier amendment of a regulation for any of the following:

(1) A change that the President finds not to be significant. In determining whether a specific change is significant, the President considers the change in context with all previous relevant design changes and all related revisions to the applicable regulations incorporated in the type certificate for the product. Changes that meet one of the following criteria are automatically considered significant:

(i) The general configuration or the principles of construction are not retained.

(ii) The assumptions used for certification of the product to be changed do not remain valid.

(2) Each area, system, component, equipment, or appliance that the President finds is not affected by the change.

(3) Each area, system, component, equipment, or appliance that is affected by the change, for which the President finds that compliance with a regulation described in paragraph (a) of this section would not contribute materially to the level of safety of the product or would be impractical.

(c) An applicant for a change to an aircraft (other than a rotorcraft) of 2725 kg or less maximum mass, or to a non turbine rotorcraft of 1350 kg or less maximum mass may show that the change and areas affected by the change comply with the regulations incorporated by reference in the original type certificate of the state of design. However, if the President finds that the change is significant in an area, he may designate compliance with an amendment to the regulation incorporated by reference in the type certificate that applies to the change and any regulation that the President finds is directly related, unless the President also finds that compliance with that amendment or regulation would not contribute materially to the level of safety of the product or would be impractical.

(d) If the President finds that the regulations in effect on the date of the application for the change do not provide adequate standards with respect to the proposed change because of a novel or unusual

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

design feature, the applicant must also comply with special conditions and amendments to those special conditions to provide a level of safety equal to that established by the regulations in effect on the date of the application for the change.

(e) The original design change approval issued by the state of design for a transport category aircraft must have been issued within 5 years of the original date of application and for any other category of aircraft within 3 years of the original date of application, unless the President approves a longer period.

(f) For aircraft certificated under GACAR § 21.41(b) the airworthiness requirements applicable to the category of the product in effect on the date of the application for the change, include each airworthiness requirement that the President finds to be appropriate for the type certification of the aircraft in accordance with those sections.

(g) Notwithstanding paragraph (b) of this section, for transport category airplanes, the applicant must show compliance with each applicable provision of GACAR Part 26, unless the applicant has elected or was required to comply with a corresponding amendment to GACAR Part 25 that was issued on or after the date of the applicable GACAR Part 26 provision.

(h) For repair designs, the applicant only needs to show that the repair design complies with regulations incorporated by reference in the type certificate and for transport category airplanes the applicable provisions of GACAR Part 26 unless the applicant has elected or was required to comply with a corresponding amendment to GACAR Part 25 that was issued on or after the date of the applicable GACAR Part 26 provision.

§ 21.69 Duration.

A design change approval is effective until surrendered, suspended, revoked, or a termination date is otherwise established by the President.

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

SUBPART D – SUPPLEMENTAL TYPE CERTIFICATES

§ 21.81 Applicability.

(a) This subpart prescribes procedural requirements for the issue of STCs other than STCs issued under Subpart C.

(b) This subpart only applies to aircraft type certificated under Subpart B.

§ 21.83 Changes Requiring a New Type Certificate.

The GACA will not accept an application for a STC under this subpart if the President finds that the proposed change in design, power, thrust, or mass is so extensive that a substantially complete investigation of compliance with the applicable regulations is required.

§ 21.85 Eligibility for a Supplemental Type Certificate.

Any person, other than the type certificate holder, who alters a product by introducing a major change in type design not great enough to require a new type certificate under GACAR § 21.83, should apply to the President for a STC. The application must be made in a form and manner prescribed by the President.

§ 21.87 Applicable Requirements.

(a) Each applicant for a STC must show that the altered product meets applicable requirements specified in GACAR § 21.67 and, in the case of an acoustical change, show compliance with the applicable noise requirements of GACAR Part 36 and, in the case of an emissions change, show compliance with the applicable fuel venting and exhaust emissions requirements of GACAR Part 34.

§ 21.89 Inspection and Tests.

(a) Each applicant must allow the President to make any inspection and any flight and ground test necessary to determine compliance with the applicable requirements of the GACAR. However, unless otherwise authorized by the President—

(1) No aircraft, aircraft engine, propeller, or part thereof may be presented to the President for test unless compliance with paragraphs (b)(2) through (b)(4) of this section has been shown for that aircraft, aircraft engine, propeller, or part thereof.

(2) No change may be made to an aircraft, aircraft engine, propeller, or part thereof between the

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

time that compliance with paragraphs (b)(2) through (b)(4) of this section is shown for that aircraft, aircraft engine, propeller, or part thereof and the time that it is presented to the President for test.

(b) Each applicant must make all inspections and tests necessary to determine—

- (1) Compliance with the applicable airworthiness, aircraft noise, fuel venting, and exhaust emission requirements;
- (2) That materials and products conform to the specifications in the type design;
- (3) That parts of the products conform to the drawings in the type design; and
- (4) That the manufacturing processes, construction, and assembly conform to those specified in the type design.

§ 21.91 Flight tests.

(a) Each applicant for a supplemental type certificate must make the tests listed in GACAR § 21.89. Before making the tests the applicant must show—

- (1) Compliance with the applicable structural requirements of the applicable airworthiness codes of the GACARs;
- (2) Completion of necessary ground inspections and tests;
- (3) That the aircraft conforms with the type design; and
- (4) That the GACA received a flight test report from the applicant (signed, in the case of aircraft to be certificated under GACAR Part 25, by the applicant's test pilot) containing the results of his tests.

(b) Each applicant must show for each flight test (except in a glider or a manned free balloon) that adequate provision is made for the flight test crew for emergency egress and the use of parachutes.

(c) Except in gliders and manned free balloons, an applicant must discontinue flight tests under this section until he shows that corrective action has been taken, whenever—

- (1) The applicant's test pilot is unable or unwilling to make any of the required flight tests; or

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

(2) Items of noncompliance with requirements are found that may make additional test data meaningless or that would make further testing unduly hazardous.

§ 21.93 Flight Test Pilot.

Each applicant for a STC that requires certification flight testing to show compliance with the applicable airworthiness requirements must provide a person holding an appropriate pilot certificate to make the flight tests required by this part.

§ 21.95 Flight Test Instrument Calibration and Correction Report.

(a) Each applicant for a STC that requires certification flight testing to show compliance with the applicable airworthiness requirements must submit a report to the President showing the computations and tests required in connection with the calibration of instruments used for test purposes and in the correction of test results to standard atmospheric conditions.

(b) Each applicant must allow the President to conduct any flight tests that he finds necessary to check the accuracy of the report submitted under paragraph (a) of this section.

§ 21.97 Statement of Conformity.

Each applicant must submit a statement of conformity to the President for each aircraft or part thereof presented to the President for tests. This statement of conformity must include a statement that the applicant has complied with GACAR § 21.89(a) (unless otherwise authorized under that paragraph).

§ 21.99 Compliance with Applicable Requirements.

(a) Each applicant must—

(1) Provide substantiating data and the necessary descriptive data for inclusion in the type design;

(2) Show that the change and areas affected by the change comply with the applicable requirements of this chapter, and provide to the GACA the means by which compliance has been shown; and

(3) Provide a statement certifying that the applicant has complied with all the applicable requirements.

(b) Approval of a major change in the type design of an aircraft engine is limited to the specific

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

engine configuration upon which the change is made unless the applicant identifies in the necessary descriptive data for inclusion in the type design the other configurations of the same engine type for which approval is requested and shows that the change is compatible with the other configurations.

§ 21.101 Issue of Supplemental Type Certificates.

(a) An applicant is eligible for a STC if he meets the requirements of GACAR §§ 21.85, 21.87 and 21.99 and the President is satisfied that—

(1) Upon examination of the type design and after completing all tests and inspections, that the type design and the product meet the applicable noise, fuel venting, emissions, and applicable airworthiness requirements of the GACAR or that any airworthiness provisions not complied with are compensated for by factors that provide an equivalent level of safety; and

(2) For an aircraft, no feature or characteristic makes it unairworthy for the category in which certification is requested.

§ 21.103 Privileges.

The holder of a STC may—

(a) In the case of aircraft, obtain airworthiness certificates.

(b) In the case of other products, obtain approval for installation on certificated aircraft.

(c) Obtain a production certificate in accordance with Subpart K of this part.

§ 21.105 Responsibility of Supplemental Type Certificate Holders to Provide Written Permission for Alterations.

A STC holder who allows a person to use the STC to alter an aircraft, aircraft engine, or propeller must provide that person with written permission acceptable to the President.

§ 21.107 Design Approval Information Retention.

(a) Each holder of a GACA STC must have a system for retaining the type-design data and all data used to show that their design complies with the airworthiness and environmental requirements specified in the basis of certification.

(b) Each holder of a GACA STC must retain the documents prescribed in paragraph (a) of this section until all affected aircraft have been permanently withdrawn from service.

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

(c) The data retained by the holder must be made available to the President upon request.

§ 21.109 Duration.

An STC is effective until surrendered, suspended, revoked, or a termination date is otherwise established by the President.

§ 21.111 Changes in Type Design.

(a) Changes to the type design of the STC are classified as minor or major. A "minor change" is one that has no appreciable effect on the weight, balance, structural strength, reliability, operational characteristics, or other characteristics affecting the airworthiness of the product. All other changes are "major changes".

(b) Minor changes in the type design of the STC may be approved under a method acceptable to the President before submitting to the GACA any substantiating or descriptive data.

(c) Major changes in the type design of the STC must be approved by the President. An applicant for approval of a major change in type design must—

- (1) Provide substantiating data and necessary descriptive data for inclusion in the type design;
- (2) Show that the change and areas affected by the change comply with the applicable airworthiness requirements, and provide the President the means by which such compliance has been shown; and
- (3) Provide a statement certifying that the applicant has complied with the applicable requirements.

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

SUBPART E – REPAIR DESIGN APPROVALS

§ 21.121 Applicability.

This subpart prescribes procedural requirements for the issue of RDA for repairs designs other than those approved under Subpart C.

§ 21.123 Eligibility for a Repair Design Approval.

Any person, other than the type certificate holder, who alters a product by introducing a design for a repair, may apply to the President for an RDA. The application must be made in a form and manner prescribed by the President.

§ 21.125 Applicable Requirements.

(a) Each applicant for an RDA must show that the altered product meets applicable requirements specified in GACAR § 21.67.

§ 21.127 Inspection and Tests.

(a) Each applicant must allow the President to make any inspection and test necessary to determine compliance with the applicable requirements of the GACAR.

§ 21.129 Statement of Conformity.

Each applicant must submit a statement of conformity to the President for each aircraft or part thereof presented to the President for tests.

§ 21.131 Compliance with Applicable Requirements.

Each applicant must—

(a) Provide the necessary descriptive data for inclusion in the type design.

(b) Show compliance with the applicable requirements and provide to the GACA the means by which compliance has been shown.

(c) Provide a statement certifying that the applicant has complied with all the applicable requirements.

§ 21.133 Issue of Repair Design Approval.

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

(a) An applicant is eligible for an RDA if he meets the requirements of GACAR §§ 21.123, 21.131 and 21.135 and the President is satisfied that—

- (1) Upon examination of the type design and after completing all tests and inspections, that the type design and the product meet the applicable airworthiness requirements of the GACAR or that any airworthiness provisions not complied with are compensated for by factors that provide an equivalent level of safety; and
- (2) For an aircraft, no feature or characteristic makes it unairworthy for the category in which certification is requested.

§ 21.135 Privileges.

The holder of an RDA may—

- (a) Obtain approval for installation on applicable certificated aircraft.
- (b) Obtain a production certificate in accordance with Subpart G of this part.

§ 21.137 Responsibility of Repair Design Approval Holders to Provide Written Permission for Repairs.

An RDA holder who allows a person to use the RDA to repair an aircraft, aircraft engine, or propeller must provide that person with written permission acceptable to the President.

§ 21.139 Design Approval Information Retention.

- (a) Each holder of an RDA must have a system for retaining the type-design data and all data used to show that their design complies with the airworthiness and environmental requirements specified in the basis of certification.
- (b) Each holder of an RDA must retain the documents prescribed in paragraph (a) of this section until all affected aircraft have been permanently withdrawn from service.
- (c) The data retained by the holder must be made available to the President upon request.

§ 21.141 Duration.

An RDA is effective until surrendered, suspended, revoked, or a termination date is otherwise established by the President.

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

SUBPART F – AIRWORTHINESS CERTIFICATES

§ 21.151 Applicability.

This subpart prescribes procedural requirements for the issue of airworthiness certificates.

§ 21.153 Eligibility.

Any registered owner or the agent of the owner of an aircraft registered in the Kingdom of Saudi Arabia may apply for an airworthiness certificate for that aircraft. An application for an airworthiness certificate must be made in a form and manner acceptable to the President.

§ 21.155 Airworthiness Certificates: Classification.

- (a) Standard airworthiness certificates are airworthiness certificates issued for aircraft type certificated in the normal, utility, acrobatic, commuter, or transport category; for manned free balloons; and for aircraft designated by the GACA as special classes of aircraft.
- (b) Special airworthiness certificates are airworthiness certificates issued for aircraft type certificated in the primary or restricted category, light-sport aircraft, experimental certificates, and special flight permits.

§ 21.157 Amendment or Modification.

An airworthiness certificate may be amended or modified only by application according to procedures prescribed by the President.

§ 21.159 Transferability.

An airworthiness certificate is transferred with the aircraft.

§ 21.161 Duration.

- (a) Unless sooner surrendered, suspended, revoked, or a termination date is otherwise established by the GACA, airworthiness certificates are effective as follows:

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

(1) Provided the maintenance, preventive maintenance, and alterations are performed in accordance with GACAR Parts 43 and 91 and the aircraft are registered in the Kingdom of Saudi Arabia, and issued standard airworthiness certificates or special airworthiness certificates, are effective for **up to 36 months.**

(2) **A special flight permit is effective for the period of time specified in the permit.**

(3) A special airworthiness certificate in the light-sport category is effective as long as—

(i) The aircraft meets the definition of a light-sport aircraft;

(ii) The aircraft conforms to its original configuration, except for those alterations performed in accordance with an applicable consensus standard and authorized by the aircraft's manufacturer or a person acceptable to the President;

(iii) The aircraft has no unsafe condition and is not likely to develop an unsafe condition; and

(iv) The aircraft is registered in the Kingdom of Saudi Arabia.

(v) The aircraft has a valid Special Airworthiness Certificate.

(4) Unless the GACA prescribes a shorter period, an experimental certificate for research and development, showing compliance with regulations, crew training, or market surveys is effective for **1 year** after the date of issue or renewal. Unless the GACA establishes a specific period, the duration of an experimental certificate issued for operating amateur-built aircraft, exhibition, air-racing, operating primary kit-built aircraft is unlimited.

(b) Upon request, the owner or operator of the aircraft must make it available for inspection by the President.

(c) Upon suspension, revocation, or termination of an airworthiness certificate by order of the President, the owner or operator of an aircraft must, upon request, surrender the certificate to the GACA.

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

§ 21.163 Aircraft Identification.

(a) Except as provided in paragraph (b) of this section, each applicant for an airworthiness certificate under this subpart must show that the aircraft is identified as prescribed in GACAR § 45.25.

(b) Paragraph (a) of this section does not apply to applicants for the following:

(1) A special flight permit; and

(2) For an aircraft identified as prescribed in GACAR §45.25: a change from one airworthiness classification to another.

§ 21.165 Issue of Standard Airworthiness Certificates for Imported Normal, Utility, Acrobatic, Commuter, and Transport Category Aircraft; Manned Free Balloons; and Special Classes of Aircraft.

(a) **Import aircraft.** An applicant for a standard airworthiness certificate for an import aircraft is eligible for that certificate if—

(1) The aircraft is type certificated in accordance with Subpart B and produced under the authority of the state of manufacture.

(2) The state of manufacture or other ICAO contracting state that has a bilateral agreement with the United States or the Kingdom of Saudi Arabia for the acceptance of the subject imported aircraft certifies in accordance with the provisions of the agreement that the aircraft conforms to the GACA-approved type design as established in accordance with Subparts B and C and is in condition for safe operation.

(3) The GACA finds that the aircraft conforms to the type design and is in condition for safe operation.

(b) **Used aircraft.** An applicant for a standard airworthiness certificate for a used aircraft is eligible for a standard airworthiness certificate if—

(1) The applicant presents evidence to the GACA that the aircraft conforms to a GACA-approved type design as established in accordance with subparts B, C, D and E and to

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

applicable ADs.

(2) The aircraft has been inspected in accordance with the performance rules for 100-hour inspections set forth in GACAR § 43.15 or an equivalent performance standard acceptable to the GACA, and is found airworthy by—

(i) The manufacturer;

(ii) The holder of a repair station certificate as provided in GACAR Part 145;

(iii) The holder of a mechanic certificate as authorized in GACAR Part 65; or

(iv) The holder of a certificate issued under GACAR Part 121 who has a maintenance and inspection organization appropriate to the aircraft type.

(3) After inspection, the GACA finds that the aircraft conforms to the type design and is in condition for safe operation.

§ 21.167 Issue of Special Airworthiness Certificates for Primary Category Aircraft.

(a) *Imported aircraft.* An applicant for a special airworthiness certificate primary-category for an imported aircraft is eligible for a special airworthiness certificate if—

(1) The aircraft is type certificated in accordance with Subpart B and produced under the authority of the state of manufacture.

(2) The state of manufacture or other ICAO contracting state that has a bilateral agreement with the United States or Kingdom of Saudi Arabia for the acceptance of the subject imported aircraft certifies in accordance with the agreement that the aircraft conforms to the GACA-approved type design as established in accordance with Subparts B, and C and is in condition for safe operation.

(3) The GACA finds that the aircraft conforms to the type design and is in condition for safe operation.

(b) *Aircraft having a current standard airworthiness certificate.* An applicant for a special airworthiness certificate-primary category for an aircraft with a current standard airworthiness certificate that meets the criteria of Subpart C may obtain the primary category certificate in exchange for its standard airworthiness certificate through the supplemental type certification process. For the

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

purposes of this paragraph, a current standard airworthiness certificate means that the aircraft conforms to its approved normal, utility, or acrobatic type design; complies with all applicable ADs, has been inspected and found airworthy within the last 12 months in accordance with GACAR § 91.449(a)(1); and is found to be in a condition for safe operation by the President.

(c) *Other aircraft.* An applicant for a special airworthiness certificate-primary category for an aircraft that meets the criteria of Subpart C and is not covered by paragraph (a) or (b) of this section is entitled to a special airworthiness certificate if—

- (1) The applicant presents evidence to the President that the aircraft conforms to an approved primary, normal, utility, or acrobatic type design, including compliance with all applicable airworthiness directives.
- (2) The aircraft has been inspected and found airworthy within the past 12 months in accordance with GACAR § 91.449(a)(1).
- (3) The aircraft is found by the President to conform to an approved type design and to be in a condition for safe operation.

(d) *Multiple-category airworthiness certificates* in the primary category and any other category will not be issued; a primary category aircraft may hold only one airworthiness certificate.

§ 21.169 Issue of Special Airworthiness Certificates for Restricted Category Aircraft.

(a) *Import aircraft.* An applicant for a restricted category airworthiness certificate for an import aircraft is eligible for that certificate if—

- (1) The aircraft is type certificated in accordance with Subpart B and produced under the authority of another state of manufacture.
- (2) The state of manufacture or other ICAO contracting state that has a bilateral agreement with the United States or Kingdom of Saudi Arabia for the acceptance of the subject imported aircraft certifies that the aircraft conforms to the GACA-approved type design as established in accordance with Subparts B and C and is in condition for safe operation.
- (3) The GACA finds that the aircraft conforms to the type design and is in condition for safe operation.

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

(b) *Other aircraft.* An applicant for a restricted category airworthiness certificate for an aircraft type certificated in the restricted category that was either a surplus aircraft of the military or previously type certificated in another category, is eligible for an airworthiness certificate if the aircraft has been inspected by the GACA and found to be in a good state of preservation and repair and in a condition for safe operation.

§ 21.170 Issue of Special Airworthiness Certificates for a Light-Sport Category Aircraft.

(a) Purpose. The GACA issues a special airworthiness certificate in the light-sport category to operate a light-sport aircraft.

(b) Eligibility. To be eligible for a special airworthiness certificate in the light-sport category:

(1) An applicant must provide the GACA with—

(i) The aircraft's operating instructions;

(ii) The aircraft's maintenance and inspection procedures;

(iii) The manufacturer's statement of compliance as described in paragraph (c) of this section; and

(iv) The aircraft's flight training supplement.

(2) The aircraft must not have been previously issued a standard, primary, or restricted airworthiness certificate, or an equivalent airworthiness certificate issued by a foreign civil aviation authority.

(3) The aircraft must be inspected by the President and found to be in a condition for safe operation.

(c) Manufacturer's statement of compliance for light-sport category aircraft. The manufacturer's statement of compliance required in paragraph (b)(1)(iii) of this section must—

(1) Identify the aircraft by make and model, serial number, class, date of manufacture, and consensus standard used;

(2) State that the aircraft meets the provisions of the identified consensus standard;

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

(3) State that the aircraft conforms to the manufacturer's design data, using the manufacturer's quality assurance system that meets the identified consensus standard;

(4) State that the manufacturer will make available to any interested person the following documents that meet the identified consensus standard:

(i) The aircraft's operating instructions.

(ii) The aircraft's maintenance and inspection procedures.

(iii) The aircraft's flight training supplement.

(5) State that the manufacturer will monitor and correct safety-of-flight issues through the issuance of safety directives and a continued airworthiness system that meets the identified consensus standard;

(6) State that at the request of the responsible aviation authority, the manufacturer will provide unrestricted access to its facilities; and

(7) State that the manufacturer, in accordance with a production acceptance test procedure that meets an applicable consensus standard has—

(i) Ground and flight tested the aircraft;

(ii) Found the aircraft performance acceptable; and

(iii) Determined that the aircraft is in a condition for safe operation.

(d) Light-sport aircraft manufactured outside the United States. For aircraft manufactured outside of the United States to be eligible for a special airworthiness certificate in the light-sport category, an applicant must meet the requirements of paragraph (b) of this section and provide to the President evidence that—

(1) The aircraft was manufactured in a country with which the United States has a Bilateral Airworthiness Agreement concerning airplanes or Bilateral Aviation Safety Agreement with associated Implementation Procedures for Airworthiness concerning airplanes, or an equivalent airworthiness agreement; and

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

(2) The aircraft is eligible for an airworthiness certificate, flight authorization, or other similar certification in its country of manufacture.

§ 21.171 Issue of Multiple Airworthiness Certification.

(a) An applicant for an airworthiness certificate in the restricted category and in one or more other categories is eligible for the certificate if—

(1) The applicant shows compliance with the requirements for each category when the aircraft is in the configuration for that category.

(2) The applicant shows that the aircraft can be converted from one category to another by removing or adding equipment by simple mechanical means.

(b) Unless the GACA finds this unnecessary for safety in a particular case the operator of an aircraft certificated under this section must have the aircraft inspected by the GACA or by a certificated mechanic with an appropriate airframe rating to determine airworthiness each time the aircraft is converted from the restricted category to another category for the carriage of passengers for compensation or hire.

(1) The aircraft is not eligible for operation in the standard classification after having been operated in the restricted category unless—

(i) The type certificated data sheet (TCDS) specifically states that the aircraft is eligible for operation in the normal category after having been operated at the limitations applicable to the restricted category.

(ii) If the TCDS does not have such a note or reference, the operations outside of the normal category operating limitations, including increased gross mass must be approved by the GACA.

§ 21.173 Issue of Experimental Certificates.

Experimental certificates are issued for the following purposes:

(a) *Research and development.* Testing new aircraft design concepts equipment, installations, operating techniques, or uses for aircraft.

(b) *Showing compliance with regulations.* Conducting flight tests and other operations to show

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

compliance with the GACAR, including flights to show compliance for issuance of type and STCs, flights to substantiate major design changes, and flights to show compliance with the function and reliability requirements of the regulations.

(c) *Crew training*. Training of the applicant's flight crews, which must be limited to the aircraft modifier's employees necessary for training in experimental aircraft.

(d) *Exhibition*. Exhibiting the aircraft's flight capabilities, performance, or unusual characteristics at air shows; in motion picture, television, and similar productions; and the maintenance of exhibition flight proficiency, including (for persons exhibiting aircraft) flying to and from such air shows and productions.

(e) *Air racing*. Participating in air races, including (for such participants) practicing for such air races and flying to and from racing events.

(f) *Market surveys*. Use of aircraft for the purpose of conducting market surveys, sales demonstrations, and customer crew training only as provided in GACAR § 21.177.

(g) *Operating amateur-built aircraft*. Operating an aircraft, the major portion of which has been fabricated and assembled by persons who undertook the construction project solely for their own education or recreation.

(h) *Operating light-sport aircraft*. Operating a light-sport aircraft that—

(1) Has been assembled—

(i) From an aircraft kit for which the applicant can provide the information required by GACAR §21.175(e); and

(ii) In accordance with manufacturer's assembly instructions that meet an applicable consensus standard; or

(2) Has been previously issued a special airworthiness certificate in the light-sport category under GACAR §21.170.

§ 21.175 Experimental Certificates: General.

An applicant for an experimental certificate must submit the following information:

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

- (a) A statement, in a form and manner prescribed by the GACA, setting forth the purpose for which the aircraft is to be used.
- (b) Enough data (such as photographs) to identify the aircraft.
- (c) Upon inspection of the aircraft, any pertinent information found necessary by the President to safeguard the general public.
- (d) In the case of an aircraft to be used for experimental purposes—
- (1) The purpose of the experiment.
 - (2) The estimated time or number of flights required for the experiment.
 - (3) The areas over which the experiment will be conducted.
 - (4) Except for aircraft converted from a previously certificated type without appreciable change in the external configuration, three view drawings or three view dimensioned photographs of the aircraft.
- (e) In the case of a light-sport aircraft assembled from a kit to be certificated in accordance with GACAR §21.173(h)(1), an applicant must provide the following:
- (1) Evidence that an aircraft of the same make and model was manufactured and assembled by the aircraft kit manufacturer and issued a special airworthiness certificate in the light-sport category.
 - (2) The aircraft's operating instructions.
 - (3) The aircraft's maintenance and inspection procedures.
 - (4) The manufacturer's statement of compliance for the aircraft kit used in the aircraft assembly that meets GACAR §21.170(c), except that instead of meeting GACAR §21.170(c)(7), the statement must identify assembly instructions for the aircraft that meet an applicable consensus standard.
 - (5) The aircraft's flight training supplement.
 - (6) In addition to paragraphs (e)(1) through (e)(5) of this section, for an aircraft kit manufactured

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

outside of the United States, evidence that the aircraft kit was manufactured in a country with which the KSA or United States has a Bilateral Airworthiness Agreement concerning airplanes or a Bilateral Aviation Safety Agreement with associated Implementation Procedures for Airworthiness concerning airplanes, or an equivalent airworthiness agreement.

§ 21.177 Experimental Certificates: Aircraft to be Used for Market Surveys, Sales Demonstrations, and Customer Crew Training.

(a) A person who has altered the design of a type certificated aircraft may apply for an experimental certificate for the altered aircraft to be used for market surveys, sales demonstrations, or customer crew training if the basic aircraft, before alteration, was type certificated in the normal, utility, acrobatic, or transport category.

(b) An applicant for an experimental certificate under this section is entitled to that certificate if, in addition to meeting the requirements of GACAR § 21.175—

(1) The applicant has established an inspection and maintenance program for the continued airworthiness of the aircraft.

(2) The applicant shows that the aircraft has been flown for at least 50 hours, or for at least 5 hours if it is a modified type certificated aircraft. The GACA may reduce these operational requirements if the applicant provides adequate justification.

§ 21.179 Special Flight Permits.

(a) A special flight permit may be issued for an aircraft that may not currently meet applicable airworthiness requirements but is capable of safe flight, for the following purposes:

(1) Flying the aircraft to a base where repairs, alterations, or maintenance are to be performed, or to a point of storage.

(2) Delivering or exporting the aircraft.

(3) Production flight testing new production aircraft.

(4) Evacuating aircraft from areas of impending danger.

(5) Conducting customer demonstration flights in new production aircraft that have satisfactorily completed production flight tests.

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

(b) A special flight permit may also be issued to authorize the operation of an aircraft at a mass in excess of its maximum certificated take-off mass for flight beyond the normal range over water or over land areas where adequate landing facilities or appropriate fuel is not available. The excess mass that may be authorized under this paragraph is limited to the additional fuel, fuel-carrying facilities, and navigation equipment necessary for the flight.

(c) Upon application, as prescribed in GACAR § 119.51, a special flight permit with a continuing authorization may be issued for aircraft that may not meet applicable airworthiness requirements, but are capable of safe flight for the purpose of flying aircraft to a base where maintenance or alterations are to be performed. The permit issued under this paragraph is an authorization, which includes conditions and limitations for flight and is set forth in the certificate holder's operations specifications. The permit issued under this paragraph may be issued to certificate holders authorized to conduct operations under GACAR Part 119 that have an approved program for continuing flight authorization.

(d) The validity of the special flight permit is not affected by operation of the aircraft outside the border of the Kingdom of Saudi Arabia as long as it is operated under the intended purpose of this section and within the timeframe specified at issuance.

(e) The special flight permit does not authorize flight over countries other than the Kingdom of Saudi Arabia without permission of that country. If such operation is contemplated, the effective date of the permit is contingent on compliance with the operating limitations specified in the issuance of the special flight permit and it becomes the responsibility of the operator of the aircraft to obtain such permission.

§ 21.181 Issue of Special Flight Permits.

(a) Except as provided in GACAR § 21.179(c), an applicant for a special flight permit must submit a statement in a form and manner prescribed by the GACA indicating—

- (1) The purpose of the flight;
- (2) The proposed itinerary;
- (3) The crew required to operate the aircraft and its equipment, such as the pilot, co-pilot, and navigator;
- (4) The ways, if any, in which the aircraft does not comply with the applicable airworthiness

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

requirements;

- (5) Any restriction the applicant considers necessary for safe operation of the aircraft; and
- (6) Any other information considered necessary by the GACA for the purpose of prescribing operating limitations.
- (b) The GACA may make or require the applicant to make appropriate inspections or tests necessary for safety.

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

SUBPART G – SAUDI ARABIA PARTS MANUFACTURER APPROVALS (SAPMA)

§ 21.201 Applicability.

This subpart prescribes—

- (a) Procedural requirements for issuing SAPMAs; and
- (b) Rules governing holders of SAPMAs.

§ 21.203 Application.

(a) The applicant for a SAPMA must apply in a form and manner prescribed by the GACA, and include the following:

- (1) The identity of the product on which the part is to be installed.
- (2) The name and address of the manufacturing facilities at which these parts are to be manufactured.
- (3) The design of the part, which consists of—
 - (i) Drawings and specifications necessary to show the configuration of the part.
 - (ii) Information on dimensions, materials, and processes necessary to define the structural strength of the parts.
- (4) Test reports and computations necessary to show that the design of the part meets the airworthiness requirements. The test reports and computations must be applicable to the product on which the part is to be installed, unless the applicant shows that the design of the part is identical to the design of a part that is covered under a type certificate or supplemental type certificate. If the design of the part was obtained by a licensing agreement, the applicant must provide evidence of that agreement.
- (5) An applicant for a SAPMA based on test reports and computations must provide a statement certifying that the applicant has complied with the airworthiness requirements.

(b) Each applicant for a SAPMA must make all inspections and tests necessary to determine—

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

- (1) Compliance with the applicable airworthiness requirements.
- (2) That materials conform to the specifications in the design.
- (3) That the part conforms to its approved design.
- (4) That the manufacturing processes, construction, and assembly conform to those specified in the design.

§ 21.205 Organization.

Each applicant for or holder of a SAPMA must provide the President with a document describing how its organization will ensure compliance with the provisions of this subpart. At a minimum, the document must describe assigned responsibilities, delegated authority, and the functional relationship of those responsible for quality to management and other organizational components.

§ 21.207 Quality System.

Each applicant must establish and describe in writing a quality system that ensures that each part conforms to its approved design and is in a condition for safe operation. This quality system must include—

- (a) *Design data control*. Procedures for controlling design data and subsequent changes to ensure that only current, correct, and approved data is used.
- (b) *Document control*. Procedures for controlling quality system documents, data, and subsequent changes to ensure that only current, correct, approved documents and data are used.
- (c) *Supplier control*. Procedures that—
 - (1) Ensure that each supplier-furnished product or part conforms to its approved design.
 - (2) Require each supplier to report to the production approval holder if a part has been released from that supplier and subsequently found not to conform to the applicable design data.
- (d) *Manufacturing process control*. Procedures for controlling manufacturing processes to ensure that each part conforms to its approved design.
- (e) *Inspecting and testing*. Procedures for inspections and tests used to ensure that each part

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

conforms to its approved design.

(f) **Inspection, measuring, and test equipment control.** Procedures to ensure calibration and control of all inspection, measuring, and test equipment used in determining conformity of each part to its approved design. Each calibration standard must be traceable to a standard acceptable to the GACA.

(g) **Inspection and test status.** Procedures for documenting the inspection and test status of parts supplied or manufactured to the approved design.

(h) **Nonconforming product and part control.**

(1) Procedures to ensure that only parts that conform to their approved design are installed on a type certificated product. These procedures must provide for the identification, documentation, evaluation, segregation, and disposition of nonconforming products and parts. Only authorized individuals may make disposition determinations.

(2) Procedures to ensure that discarded parts are rendered unusable.

(i) **Corrective and preventive actions.** Procedures for implementing corrective and preventive actions to eliminate the causes of an actual or potential nonconformity to the approved design or noncompliance with the approved quality system.

(j) **Handling and storage.** Procedures to prevent damage and deterioration of each part during handling, storage, preservation, and packaging.

(k) **Control of quality records.** Procedures for identifying, storing, protecting, retrieving, and retaining quality records. A production approval holder must retain these records for at least 5 years for the parts manufactured under the approval and at least 10 years for critical components identified under GACAR § 45.15(c).

(l) **Internal audits.** Procedures for planning, conducting, and documenting internal audits to ensure compliance with the approved quality system. The procedures must include reporting results of internal audits to the manager responsible for implementing corrective and preventive actions.

(m) **In-service feedback.** Procedures for receiving and processing feedback on in-service failures, malfunctions, and defects. These procedures must include a process for assisting the design approval holder to—

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

(1) Address any in-service problem involving design changes.

(2) Determine if any changes to the instructions for continued airworthiness are necessary.

(n) **Quality escapes.** Procedures for identifying, analyzing, and initiating appropriate corrective action for parts that have been released from the quality system and that do not conform to the applicable design data or quality system requirements.

§ 21.209 Quality Manual.

Each applicant for or holder of a SAPMA must provide a manual describing its quality system to the GACA for approval. The manual must be in the English language and retrievable in a form acceptable to the President.

§ 21.211 Location of or Change to Manufacturing Facilities.

(a) An applicant may obtain a SAPMA for manufacturing facilities located outside of the Kingdom of Saudi Arabia if the GACA finds no undue burden in administering the applicable requirements.

(b) The SAPMA holder must obtain GACA approval before making any changes to the location of any of its manufacturing facilities.

(c) The SAPMA holder must immediately notify the GACA, in writing, of any change to the manufacturing facilities that may affect the inspection, conformity, or airworthiness of its SAPMA part.

§ 21.213 Inspections and Tests.

(a) Each applicant for or holder of a SAPMA must allow the GACA to witness any tests, including any inspections or tests at a supplier facility, and inspect its quality system, facilities, technical data, and any manufactured parts necessary to determine compliance with this subsection.

(b) Unless otherwise authorized by the GACA, the applicant or holder—

(1) May not present any part to the GACA for an inspection or test unless compliance with GACAR §§ 21.203(b)(2)–(4) has been shown for that part.

(2) May not make any change to a part between the time that compliance with GACAR §§ 21.203(b)(2)–(4) is shown for that part and the time that the part is presented to the GACA for the inspection or test.

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

§ 21.215 Issuance.

The GACA issues a SAPMA after finding that the applicant complies with the requirements of this subpart and the design complies with the requirements of the GACAR applicable to the product on which the part is to be installed.

§ 21.217 Duration.

A SAPMA is effective until surrendered, withdrawn, or the President otherwise terminates it.

§ 21.219 Transferability.

The holder of a SAPMA may not transfer the SAPMA.

§ 21.221 Responsibility of Holder.

Each holder of a SAPMA must—

- (a) Amend the document required by GACAR § 21.205 as necessary to reflect changes in the organization and provide these amendments to the GACA.
- (b) Maintain the quality system in compliance with the data and procedures approved for the SAPMA.
- (c) Ensure that each SAPMA part conforms to its approved design and is in a condition for safe operation.
- (d) Mark the SAPMA part for which an approval has been issued. Marking must be in accordance with GACAR Part 45, including any critical parts.
- (e) Identify any portion of the SAPMA part (such as sub-assemblies, component parts, or replacement parts) that leave the manufacturer's facility as GACA-approved with the manufacturer's part number and name, trademark, symbol, or other GACA-approved manufacturer's identification.
- (f) Have access to design data necessary to determine conformity and airworthiness for each part produced under the SAPMA.
- (g) Retain each document granting SAPMA and make it available to the President upon request.

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

(h) Make available to the President information regarding all delegation of authority to suppliers.

§ 21.223 Design changes.

(a) *Classification of design changes.*

(1) A “minor change” to the design of a part produced under a SAPMA is one that has no appreciable effect on the approval basis.

(2) A “major change” to the design of a part produced under a SAPMA is any change that is not minor.

(b) *Approval of design changes.*

(1) Minor changes to the basic design of a SAPMA may be approved using a method acceptable to the President.

(2) The SAPMA holder must obtain GACA approval of any major change before including it in the design of a part produced under a SAPMA.

§ 21.225 Changes in the Quality System.

After the issuance of a SAPMA—

(a) Each change to the quality system is subject to review by the GACA.

(b) The holder of the SAPMA must immediately notify the GACA, in writing, of any change that may affect the inspection, conformity, or airworthiness of its part.

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

SUBPART H – EXPORT AIRWORTHINESS APPROVALS

§ 21.241 Applicability.

This subpart prescribes—

- (a) Procedural requirements for issuing export airworthiness approvals; and
- (b) Rules governing the holders of those approvals.

§ 21.243 Export Airworthiness Approvals.

- (a) An export airworthiness approval for an aircraft is issued in the form of an export airworthiness certificate. This certificate does not authorize operation of that aircraft.
- (b) The GACA prescribes the form and manner in which an export airworthiness approval for an aircraft engine, propeller, or article is issued.
- (c) If the GACA finds no undue burden in administering the applicable requirements, an export airworthiness approval may be issued for a product or article located outside of the Kingdom of Saudi Arabia.
- (d) The date of issuance of an export airworthiness approval is the date the product was inspected by the GACA, found to comply with applicable requirements, and determined to be airworthy.

§ 21.245 Application.

Any person may apply for an export airworthiness approval. Each applicant must apply in a form and manner prescribed by the GACA.

§ 21.247 Issuance of Export Airworthiness Certificates.

- (a) A person may obtain from the GACA an export airworthiness certificate for an aircraft if—
 - (1) A new or used aircraft has a valid—
 - (i) Standard airworthiness certificate; or
 - (ii) Special airworthiness certificate in the primary or restricted category.

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

(b) An aircraft need not meet a requirement specified in paragraph (a) of this section, if—

(1) The importing country or jurisdiction accepts, in a form and manner acceptable to the GACA, a deviation from that requirement; and

(2) The export certificate of airworthiness lists as an exception any difference between the aircraft to be exported and its type design

§ 21.249 Issuance of Export Airworthiness Approvals for Aircraft Engines, Propellers, and Articles.

(a) A person may obtain an export airworthiness approval from the GACA so that person may export a new article that is manufactured under this part if it conforms to its approved design and is in a condition for safe operation.

(b) A new article need not meet a requirement of paragraph (a) of this section if—

(1) The importing country or jurisdiction accepts, in a form and manner acceptable to the GACA, a deviation from that requirement.

(2) The export airworthiness approval lists as an exception any difference between the aircraft engine, propeller, or article to be exported and its approved design.

(c) A person may obtain an export airworthiness approval from the GACA so that person may export a new or used aircraft engine, propeller, or article if it conforms to its approved design and is in a condition for safe operation.

(d) A used aircraft engine or propeller need not meet a requirement of paragraph (c) of this section if—

(1) The importing country or jurisdiction accepts, in a form and manner acceptable to the GACA, a deviation from that requirement; and

(2) The export airworthiness approval lists, as an exception, any difference between the used aircraft engine or propeller to be exported and its approved design.

§ 21.251 Responsibilities of Exporters.

Unless otherwise agreed to by the importing country or jurisdiction, each exporter must—

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

- (a) Forward to the importing country or jurisdiction all documents specified by that country or jurisdiction.
- (b) Preserve and package products and articles as necessary to protect them against corrosion and damage during transit or storage and state the duration of effectiveness of such preservation and packaging.
- (c) Remove or cause to be removed any temporary installation incorporated on an aircraft for the purpose of export delivery and restore the aircraft to the approved configuration upon completion of the delivery flight.
- (d) Secure all proper foreign entry clearances, from all the countries or jurisdictions involved, when conducting sales demonstrations or delivery flights.
- (e) When a title to an aircraft passes or has passed to a foreign purchaser—
 - (1) Request cancellation of the Kingdom of Saudi Arabia registration and airworthiness certificates from the GACA, giving the date of transfer of title, and the name and address of the foreign owner.
 - (2) Return the registration and airworthiness certificates to the GACA.
 - (3) Provide a statement to the GACA certifying that the Kingdom of Saudi Arabia identification and registration numbers have been removed from the aircraft in compliance with GACAR § 45.33.

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

SUBPART I – ACCEPTANCE OF AIRCRAFT ENGINES, PROPELLERS, AND ARTICLES FOR IMPORT

§ 21.261 Acceptance of Aircraft Engines and Propellers.

An aircraft engine or propeller manufactured in a foreign country or jurisdiction meets the requirements for acceptance under this subpart if—

- (a) That country or jurisdiction is subject to the provisions of an agreement with the United States or the Kingdom of Saudi Arabia for the acceptance of that product.
- (b) That product is marked in accordance with GACAR Part 45.
- (c) A current export certificate of airworthiness (or Airworthiness Release Certificate) has been issued in accordance with the provisions of an agreement noted in paragraph (a) of this section that certifies that the engine or propeller—
 - (1) Conforms to the GACA-approved type design established in accordance with subparts C and E and is found to be in condition for safe operation; and
 - (2) Has been subjected to a final operational check by the manufacturer.

§ 21.263 Acceptance of Articles.

An article manufactured in a foreign country or jurisdiction meets the requirements for acceptance if—

- (a) That country or jurisdiction is subject to the provisions of an agreement with the United States or the Kingdom of Saudi Arabia for the acceptance of that article;
- (b) That article is marked in accordance with GACAR Part 45; and
- (c) An export airworthiness approval has been issued in accordance with the provisions of an agreement for that article for import into the United States or Kingdom of Saudi Arabia.

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

**SUBPART J – SAUDI ARABIA TECHNICAL STANDARD ORDER (SATSO)
AUTHORIZATIONS**

§ 21.271 Applicability.

(a) This subpart prescribes—

- (1) Procedural requirements for the issue of SATSO authorizations; and
- (2) Rules governing the holders of a SATSO authorization.

(b) For the purpose of this subpart—

- (1) A TSO is a minimum performance standard for specified articles used on civil aircraft that has been issued by the FAA.
- (2) A SATSO authorization is a GACA design and production approval issued to the manufacturer of an article that has been found to meet a specific TSO. Articles with SATSO authorization require additional GACA installation approval.
- (3) An article manufacturer is the person who controls the design and quality of the article produced (or to be produced, in the case of an application), including any related parts, processes, or services procured from an outside source.
- (4) An article manufactured under a SATSO authorization is an approved article for the purpose of meeting the regulations of the GACARs that require the article to be approved;

§ 21.273 Application.

(a) An applicant for a SATSO authorization must apply to the President in the form and manner prescribed by the GACA. The applicant must include the following documents in the application:

- (1) A statement of conformance certifying that the applicant has met the requirements of this subpart and that the article concerned meets the applicable TSO that is effective on the date of application for that article.
- (2) One copy of the technical data required in the applicable TSO.

(b) If the applicant anticipates a series of minor changes in accordance with GACAR § 21.295, the

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

applicant may set forth in its application the basic model number of the article and the part number of the components followed by open brackets to denote that suffix change letters or numbers (or combinations of them) will be added from time to time.

(c) If the application is deficient, the applicant must, when requested by the GACA, provide any additional information necessary to show compliance with this part.

§ 21.275 Organization.

Each applicant for or holder of a SATSO authorization must provide the GACA with a document describing how the applicant's organization will ensure compliance with the provisions of this subpart. At a minimum, the document must describe assigned responsibilities, delegated authority, and the functional relationship between management and other organizational components and those responsible for quality.

§ 21.277 Quality System.

Each applicant for or holder of a SATSO authorization must establish a quality system that meets the requirements of GACAR § 21.207.

§ 21.279 Quality Manual.

Each applicant for or holder of a SATSO authorization must provide a manual describing its quality system to the GACA for approval. The manual must be in the English language and retrievable in a form acceptable to the President.

§ 21.281 Location of or Change to Manufacturing Facilities.

(a) An applicant may obtain a SATSO authorization for manufacturing facilities located outside of the Kingdom of Saudi Arabia if the President finds no undue burden in administering the applicable requirements of the GACAR.

(b) The SATSO authorization holder must obtain SATSO authorization before making any changes to the location of any of its manufacturing facilities.

(c) The SATSO authorization holder must immediately notify the GACA, in writing, of any change to the manufacturing facilities that may affect the inspection, conformity, or airworthiness of its product or article.

§ 21.283 Inspections and Tests.

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

Each applicant for or holder of a SATSO authorization must allow the GACA to inspect its quality system, facilities, technical data, and any manufactured articles and witness any tests, including any inspections or tests at a supplier facility, necessary to determine compliance with the GACAR.

§ 21.285 Issuance.

If the President finds that the applicant complies with the requirements of the GACAR, the GACA issues a SATSO authorization to the applicant (including all TSO deviations granted to the applicant).

§ 21.287 Duration.

(a) A SATSO authorization is effective until surrendered, withdrawn, or otherwise terminated by President.

(b) If a TSO is revised or canceled, the holder of SATSO authorization may continue to manufacture articles that meet the original TSO without obtaining a new acceptance, authorization, or approval but must comply with the requirements of the GACAR.

§ 21.289 Transferability.

A SATSO authorization is not transferable.

§ 21.291 Responsibility of holder.

Each holder of a SATSO authorization must—

(a) Amend the document required by GACAR § 21.275 as necessary to reflect changes in the organization and provide these amendments to the GACA.

(b) Maintain a quality system in compliance with the data and procedures approved for the SATSO authorization.

(c) Ensure that each manufactured article conforms to its approved design, is in a condition for safe operation, and meets the applicable TSO.

(d) Mark the SATSO article for which an approval has been issued. Marking must be in accordance with GACAR Part 45, including any critical parts.

(e) Identify any portion of the SATSO article (e.g., sub-assemblies, component parts, or replacement

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

articles) that leave the manufacturer's facility as GACA-approved with the manufacturer's part number and name, trademark, symbol, or other GAC approved manufacturer's identification.

(f) Have access to design data necessary to determine conformity and airworthiness for each article produced under the SATSO authorization. The manufacturer must retain this data until it no longer manufactures the article. At that time, copies of the data must be sent to the GACA.

(g) To keep a complete and current technical data file for each type or model article, including drawings and specifications.

(h) Retain its SATSO authorization and make it available to the GACA upon request.

(i) Make available to the GACA information regarding all delegation of authority to suppliers.

§ 21.293 Approval for Deviation.

(a) Each manufacturer who requests approval to deviate from any performance standard of a TSO must show that factors or design features provide an equivalent level of safety to compensate for the standards from which a deviation is requested.

(b) The manufacturer must send requests for approval to deviate, together with all pertinent data, to the President.

§ 21.295 Design changes.

(a) *Minor changes by the manufacturer holding a SATSO authorization.* The manufacturer of an article under an authorization issued under this part may make minor design changes (any change other than a major change) without further approval by the GACA. In this case, the changed article keeps the original model number (part numbers may be used to identify minor changes) and the manufacturer must forward to the GACA any revised data that are necessary for compliance with GACAR § 21.273(b).

(b) *Major changes by the manufacturer holding a SATSO authorization.* Any design change by the manufacturer extensive enough to require a substantially complete investigation to determine compliance with a TSO is a major change. Before making a major change, the manufacturer must assign a new type or model designation to the article and apply for an authorization under GACAR § 21.273.

(c) *Changes by persons other than the manufacturer.* No design change by any person (other than

GACAR PART 21 – CERTIFICATION PROCEDURES FOR PRODUCTS AND ARTICLES

the manufacturer who provided the statement of conformance for the article) is eligible for approval under this part unless the person seeking the approval is a manufacturer and applies under GACAR § 21.273(a) for a separate SATSO authorization. Persons other than a manufacturer may obtain approval for design changes under GACAR Part 43 or under the applicable airworthiness regulations.

§ 21.297 Changes in Quality System.

After the issuance of a SATSO authorization—

- (a) Each change to the quality system is subject to review by the GACA.
- (b) The holder of the SATSO authorization must immediately notify the GACA in writing of any change that may affect the inspection, conformity, or airworthiness of its article.